House Committee on Commerce

Minutes of Meeting
2017 Regular Session
April 25, 2017

I. CALL TO ORDER

Representative Thomas G. Carmody, Jr., chairman of the House Committee on Commerce, called the meeting to order at 1:05 p.m. in Room 1, in the state capitol in Baton Rouge, Louisiana.

II. ROLL CALL

MEMBERS PRESENT:

Representative Thomas G. Carmody, Jr., chairman
Representative John F. "Andy" Anders
Representative Chad Brown
Representative Patrick Connick
Representative Jean-Paul P. Coussan
Representative Kenny R. Cox
Representative Reid Falconer
Representative Cedric B. Glover
Representative Stephanie Hilferty
Representative Paul Hollis, vice chairman
Representative Patrick O. Jefferson
Representative Christopher J. Leopold
Representative Rodney Lyons
Representative J. Kevin Pearson
Representative Edward J. Price
Representative Stephen E. Pugh
Representative H. Eugene Reynolds
Representative Robert E. Shadoin

MEMBERS ABSENT:

Representative Helena N. Moreno

STAFF MEMBERS PRESENT:

Sandy Painting, secretary
Rashida Keith, attorney
Thomas Devillier, attorney

ADDITIONAL ATTENDEES PRESENT:

Beverly Vincent, sergeant at arms

III. DISCUSSION OF LEGISLATION

House Concurrent Resolution No. 3 by Representative Armes

Representative Armes presented House Concurrent Resolution No. 3, which repeals administrative licensing requirements relative to residential specialty classifications.

Mr. Llewellyn "Biscuit" Smith, [redacted] spoke in support of House Concurrent Resolution No. 3.

Mr. Jerry Passman, Passman Homes, [redacted] spoke in support of House Concurrent Resolution No. 3.

Mr. Tommy Cryar, [redacted], spoke in support of House Concurrent Resolution No. 3.

Mr. Michael McDuff, Louisiana State Contractor's Board, [redacted] spoke for information only on House Concurrent Resolution No. 3.

Mr. Larry Bankston, [redacted], spoke for information only on House Concurrent Resolution No. 3.

Mr. Nick Castjohn, Louisiana Home Builders Association, [redacted], spoke in opposition to House Concurrent Resolution No. 3.

Mr. Kenneth Jones, Jones Designs/Builders, LLC, [redacted], spoke in opposition to House Concurrent Resolution No. 3.

Representative Reynolds offered a motion to report House Concurrent Resolution No. 3 favorably, to which Representative Falconer objected. A roll call vote was taken, and the motion failed to pass by a vote of 6 yeas and 11 nays. Representatives Cox, Glover, Jefferson, Price, Pugh, and Reynolds voted yea. Representatives Carmody, Anders, Connick, Coussan, Falconer, Hilferty, Hollis, Leopold, Lyons, Pearson, and Shadoin voted nay.

Representative Carmody offered a motion to involuntarily defer action on House Concurrent Resolution No. 3. Without objection, action on House Concurrent Resolution No. 3 was involuntarily deferred by a vote of 17 yeas and 0 nays. Representatives Carmody, Anders, Connick,

Coussan, Cox, Falconer, Glover, Hilferty, Hollis, Jefferson, Leopold, Lyons, Pearson, Price, Pugh, Reynolds, and Shadoin voted yea.

Witness cards submitted by those who did not speak are as follows: 3 in support and 5 in opposition. Witness cards are included in the committee records.

House Bill No. 471 by Representative Foil

Representative Foil presented House Bill No. 471, which provides relative to manufactured and modular housing.

Mr. Steve Duke, Louisiana Manufactured Housing Association, [redacted], spoke in support of House Bill No. 471.

Representative Cox offered amendments to House Bill No. 471, which would modify present and proposed law (R.S. 51:912.22(1) to require installation for the setup of new or used modular homes to be in compliance with the International Residential Code enforced by the local authority having jurisdiction. Representative Cox offered a motion to adopt the proposed amendments. Without objection, the amendments were adopted by a vote of 17 yeas and 0 nays. Representatives Carmody, Anders, Connick, Coussan, Cox, Falconer, Glover, Hilferty, Hollis, Jefferson, Leopold, Lyons, Pearson, Price, Pugh, Reynolds, and Shadoin voted yea.

Representative Anders offered a motion to report House Bill No. 471 with amendments. Without objection, House Bill No. 471 was reported with amendments by a vote of 16 yeas and 0 nays. Representatives Carmody, Anders, Connick, Coussan, Cox, Falconer, Glover, Hilferty, Hollis, Jefferson, Leopold, Lyons, Pearson, Price, Reynolds, and Shadoin voted yea.

Witness cards submitted by those who did not speak are as follows: 2 in support. Witness cards are included in the committee records.

House Bill No. 440 by Representative Davis

Representative Davis presented House Bill No. 440, which requires contractors to provide certain license, classification, and insurance information.

Representative Carmody offered amendments in the form of a substitute bill to House Bill No. 440. Representative Carmody offered a motion to adopt the substitute bill. Without objection, the amendments were adopted by a vote of 18 yeas and 0 nays. Representatives Carmody, Anders, Chad Brown, Connick, Coussan, Cox, Falconer, Glover, Hilferty, Hollis, Jefferson, Leopold, Lyons, Pearson, Price, Pugh, Reynolds, and Shadoin voted yea.

Representative Hilferty offered a motion to report House Bill No. 440 by substitute. Without objection, House Bill No. 440 was reported by substitute by a vote of 18 yeas and 0 nays. Representatives Carmody, Anders, Chad Brown, Connick, Coussan, Cox, Falconer, Glover, Hilferty, Hollis, Jefferson, Leopold, Lyons, Pearson, Price, Pugh, Reynolds, and Shadoin voted yea.

Witness cards submitted by those who did not speak are as follows: 1 in support, 2 in opposition, and 3 for information only. Witness cards are included in the committee records.

House Bill No. 17 by Representative Terry Brown

Representative Terry Brown presented House Bill No. 17, which provides relative to the release of certain account information for the estate of a decedent.

Mr. Len Riviere, Office of Financial Institutions, [redacted] spoke for information only on House Bill No. 17.

Mr. Robert Bethard, [redacted], spoke in support of House Bill No. 17.

Representative Price offered amendments to House Bill No. 17, which would delete all references to the term "brokerage firm" and insert in lieu thereof the term "dealer", which is already defined in present law (R.S. 51:702). Representative Price offered a motion to adopt the proposed amendments. Without objection, the amendments were adopted by a vote of 16 yeas and 0 nays. Representatives Carmody, Chad Brown, Connick, Coussan, Cox, Falconer, Glover, Hilferty, Hollis, Leopold, Lyons, Pearson, Price, Pugh, Reynolds, and Shadoin voted yea.

Representative Price offered a motion to report House Bill No. 17 with amendments. Without objection, House Bill No. 17 was reported with amendments by a vote of 17 yeas and 0 nays. Representatives Carmody, Chad Brown, Connick, Coussan, Cox, Falconer, Glover, Hilferty, Hollis, Jefferson, Leopold, Lyons, Pearson, Price, Pugh, Reynolds, and Shadoin voted yea.

IV. OTHER BUSINESS

There was no other business.

V. ANNOUNCEMENTS

There were no announcements.

VI. ADJOURNMENT

The meeting was adjourned at 2:39 p.m.

Respectfully submitted,

Chairman Thomas G. Carmody, Jr.
House Committee on Commerce

Date adopted: